FUTO BAR ASSOCIATION CONSTITUTION

JUDICIARY

SUG

FEDERAL UNIVERSTY OF TECHNOLOGY, OWERRI
P.M.B 1526 OWERRI,
IMO STATE, NIGERIA



Reviewed by the Constitution Review Committee
2020/2021 Academic session
Barr. Dr. Comr. Chineke Emmanuel Ekene
(Chairman)
and
His Excellency Barr. Dr. Comr. Okeke Kay Kay K
as FBA President

THE CONSTITUTION

OF

THE FUTO BAR ASSOCIATION

(FBA)

AS REVIEWED BY

THE CONSTITUTION REVIEW COMMITTEE
2020/2021 SESSION

AND

APPROVED BY THE HOUSE

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PREAMBLE

We the members of the FUTO Bar Association (FBA), in order to form a more perfect union, build a just and humane society, establish a Government that shall embody our ideals and aspirations, promote the common good of the association, conserve and develop our patrimony, establish justice, ensure domestic tranquility, promote the general welfare of our members, ensure law and order and secure the blessings of liberty to ourselves, for Posterity, and in accordance with the objectives of students' unionism, imploring the aid of Almighty God, do hereby enact, ordain and establish this Constitution for the FUTO Bar Association (FBA).

ARTICLE 1: NAME OF ASSOCIATION

The name of this association shall be FUTO BAR ASSOCIATION (FBA) and this constitution shall be known as and called THE CONSTITUTION OF THE FUTO BAR ASSOCIATION, herein after referred to as THE CONSTITUTION.

ARTICLE 2: AIMS and OBJECTIVES

The aims and objectives of the Association are:

I. The purpose for which the organization is to be organized shall be consistent with the aims and objectives of instituting legality amongst students of the Federal University of Technology Owerri. No purpose or objective shall be in conflict with the Students' Union Government constitution or the laws of the school.

II. The specific objective for association is to preserve, protect and defend theHuman Right Declaration of the Rule of Law in accordance with the constitution of the Federal Republic of Nigeria and that of the Students' Union Government among students of FUTO.

III. Provide an opportunity for the Students of Federal University of Technology Owerri represent and actively participate in legality.

IV. To create a veritable forum to promote and develop physical, social, mental and intellectual prowess.

V. To encourage and maintain a cordial peaceful and loving relationship amongst all members irrespective of differences.

VI. To condemn and oppose all forms of injustice, oppression and victimization through constitutional means.

VII. To protect and maintain the constitution and image of the members.

c) Secretary General (Attorney-General 1)
d) Assistant Secretary General
e) Financial Secretary
f) Treasurer
g) Public Relations Officers
h) Director of Social
i) Provost

2. EXECUTIVE COUNCIL

All officers of the Association shall constitute the Executive Council.

3. POWERS AND FUNCTIONS OF THE EXECUTIVE COUNCIL

I. The Executive Council shall carry out the day-to-day running of the association in conformity with other sections of this constitution.

II. The Executive Council shall be accountable to the entire members of the association.

III. The Executive Council shall ratify all programmes of the association.

IV. They shall be responsible for the implementation and maintenance of the Constitution and any other laws.

V. Persons elected into the Executive Council shall not begin to perform the function(s) of the office until they have taken the OATH OF OFFICE and OATH OF ALLEGIANCE as provided in this constitution.

4. DUTIES OF OFFICERS

I. THE PRESIDENT

The President shall:

A) Be the head of the Executive Council.
B) Be the head of the association's official delegations.
C) Acting through or with the Secretary General, summon Executive or General Meetings of the Association.
D) Preside over all Executive or General Meetings of the association.

E) Be responsible for setting up committees/panels and appointing Chairman for such where/when necessary for the betterment of the association.
F) The president shall sign the Inducted Barrister certificate as to affirm their member ship
G) With the Financial Secretary be a signatory to the association cheque and other financial accounts.
H) Forward certified contenders of the BENCH to the SRC in accordance with Article 13 of this constitution.
I) Fill any any vacant positions by appointment after the application of Article 12 of this constitution.

THE VICE PRESIDENT

The Vice President shall:

A. Assist the President in his/her duties and act in his/her absence.
B. In any case, the office of the President falls vacant, hold the seal, pending the conduct of a bye-election.
C. Carry out all functions as herein assigned by the constitution or by the President.

SECRETARY GENERAL

The Secretary General shall:

A. Be the Attorney General of the association in all legal matters, represent the association in court or delegate the Assistant Secretary General.
B. Be responsible for the general administrative duties of the association.
C. Convene an Executive Meeting at the request of the President but convene a General Meeting in consultation with the President.
D. Convene a general meeting when needs arises .
E. Keep attendance books, minutes and records of both the Executive and General Meetings.
F. Receive and record all correspondence of the association and also keep and countersign all external correspondence.

ARTICLE 10: CODE OF CONDUCT PANEL

I. COMPOSITION

A. The Code of Conduct Panel shall comprise of five (5) members with any Senior Advocate of FUTO (SAF) among them as the Chairman.

B. In the event of no SAF, or more than one SAF in the committee, then a Chairman shall be appointed among them.

II. POWERS AND FUNCTIONS

A. Investigate any allegation of misconduct against any member of the association including Executive Council Members.

B. Prescribe punishment for indicted members in relation to Article 8, section I, and sub-section b, of this constitution.

C. Prescribe the Mode of Dressing for members in court, meetings and functions.

D. To effectively monitor the out-of-court behavior of members with view of instilling professional ethics.

E. The decision of the code of conduct panel can only be questioned on the floor of a general meeting and can only be nullified by two-third (2/3) majority of a properly constituted meeting.

III. MODE OF ELECTION AND TENURE

A. The members of the panel shall be elected on the day of the election of Executive Council members.

B. Their tenure of office shall be same as that of the Executive Council members.

IV. REMOVAL OF MEMBER(S) OF THE PANEL

A. If a petition is written against any member of the panel, the President of the association shall be among the committee to investigate the petition with other members of the panel.

B. Member(s) of the panel stands removed from office if a motion for his/her removal is signed by at least ten(10) financially up-to-date members and is passed by two-third (2/3) of the members in a properly constituted meeting.

ARTICLE 11: CODE OF CONDUCT

I. CODE OF CONDUCT FOR EXECUTIVE COUNCIL MEMBERS

A. He/she shall not put himself in a position where his personal interest conflicts with his duties and responsibilities.

B. He/she shall not ask for, accept any toke/property or take part in any society which is incompatible or not dignifying of his office. Incompatibility and non-dignifying, in this case, shall be determined by the Code of Conduct Panel.

C. He/she shall not abuse his office/position or take arbitrary actions that may be prejudicial to members of the association or the association.

II. CODE OF CONDUCT FOR MEMBERS OF THE ASSOCIATION

A. Members must wear white on black for meetings, court sittings or any other recognized functions of the association.

B. No member who has collected Consultation Fee(s) and Retention Fee(s) from a client shall refuse to appear in court on behalf of the client.

C. No member shall abandon a case he/she is handling without proper notice to the court and client forty-eight (48) hours before the next sitting.

D. No member should ever offer a member of the Judicial Council any incentives/gifts/benefits of any kind as an indictment/bribe for the granting of any favour for a court case.

VI. THE DIRECTOR OF SOCIALS

The Director of Socials shall:

A. Be responsible for all social activities of the association.
B. Be the custodian of all audio-visual instructional materials of the association.
C. Direct the affairs of the association during orientation of new members.
D. Be the chairman at the annual Law Dinner ceremony committee.

VII. THE PROVOST

The Provost shall:

A. Maintain law and order at all meetings of the association.
B. In conjunction with the Assistant Secretary General, make arrangements for venue of meetings and other functions of the association.
C. Accredit the members during meetings and other functions of the association.
D. Execute the judgment(s) of the Code of Conduct panel.
E. Perform any other such function(s) allocated by the President or General House.

5. OTHER OFFICERS

I. GRAND PATRON

The Dean Students' Affairs Unit shall be the Grand Patron of the association otherwise decided by the incumbent Executive Council of the Association for the appointment of a Grand patron other than the Dean Students' Affairs.

ARTICLE 6: TENURE OF OFFICE

A. The tenure of the Executive Council

I. Shall last for one academic session (two semesters) from the time of election, unless otherwise removed or resigned in accordance with the provision of this constitution.

II. Any officer(s) of the council shall be removed if found to have deserted his/her offices(s) and if the provost declares that he/she/they has/have been absent from three (3) consecutive meetings of the council without due permission from the council.

III. In event of removal/resignation/desertion from office or death, a bye-election shall be conducted within 7 days or the President shall nominate a member of the association to fill the vacancy.

IV. In the event of resignation by the President, he/she shall submit such notice of Letter of Resignation to the General House for Acceptance/Rejection.

V. Each member of the Executive Council shall give an account of his/her office on a date not later than 21 days therefore.

ARTICLE 7: REMOVAL FROM OFFICE

I. An Executive Officer stands removed from office if a motion for his removal is passed by two-majority of members present in a properly constituted meeting.

II. Any Executive who fail to attend the FBA general meeting four (4) consecutive times without any tangible reason will be subjected to replacement

III. A motion for the removal of an executive officer(s) shall be signed and countersigned by at least fifteen (15) financially up to date members of the association.

IV. If a motion of removal is submitted against the President, the Vice President shall preside or any other executive council member in the order provided in this constitution.

ARTICLE 3: MEMBERSHIP AND PRIVILEGES

1. MEMBERSHIP

Membership shall be open to matriculated FUTO students who have undergone and passed the mandatory SUG SCHOOL OF PARALEGAL STUDIES (SSPS)or any authorized legal school of the Association, been called-to-bar by the Chief Judge and inducted into the association by the FBA President on payment of registration fee.

2. MEMBERSHIP PRIVILEGES

Members shall have the privileges to:

i. Use the facilities of the association as may be approved by the association.
ii. Wear the official emblem and colours of the association.
iii. Participate in the association's meetings, seminars, workshops or any other functions.
iv. Litigate cases in the students' High Court.
v. Vote and be voted for.
vi. Member shall have the right for donations if the needs arises (for sick and challenged members)
vii. Any member who fails to attend the FBA meeting for a semester sieze being a member of FBA except 400L Barristes on Industrial training

ARTICLE 4: MEETINGS AND QUORUM

1. GENERAL MEETINGS:

A) The General Meeting with the permission of the President shall be convened by the Secretary of the association once every week.
Only in emergencies or an order from the President shall the above be flouted.

B) The President shall preside over every meeting, in his absence; the Vice President shall preside over the meeting.

C) The General meeting shall be attended by all members and can be observed by the intending members of the association.

D) One-third (1/3) of the members shall constitute a Quorum.

2. MEETING OF THE EXECUTIVE COUNCIL:

A) The Executive council shall meet, at least, once every month to ensure the effective running of the association.

B) The Secretary can convene an executive council meeting on request by the President, signed by at least two-third (2/3) of the members of the executive council.

C) Two-third (2/3) of the executive council shall constitute a quorum, and two-third of the nine (9) members shall be six (6) in this context.

D) The Executive Council shall decide the manner in which it shall vote on any matter before it.

E) In the absence of the President, the Vice President shall preside over the meeting and in the absence of both, other members present shall appoint a chairman from amongst themselves.

3. EMERGENCY MEETINGS:

Emergency meetings shall be summoned only when:

A. When a petition(s) against any executive member has been received by the secretary.
B. A vote of No Confidence is passed on the executive council.
C. An issue(s) brought before the general house was not satisfactorily treated and such issue(s) cannot wait till the next General meeting.
D. Any decision of the Code of Conduct panel generates controversy.
E. The association is taken to court.

ARTICLE 5: OFFICERS AND DUTIES

1. OFFICERS OF THE ASSOCIATION

The association shall have the following officers:

a) The President
b) Vice President

F. The Chairman of the Electoral Commission shall announce theresults of the elections as soon as the counting is completed and the result shall be published within twenty-four (24) hours.

ARTICLE 13: THE JUDICIARY/ JUDICIAL COUNCIL

I. COMPOSITION

The Judicial Council shall be members of the Judiciary Arm of Government and shall comprise of:

i. The Chief Judge, as the head of the Council
ii. Four (4) other Judges
iii. President of the FUTO Bar Association (FBA)
iv. The secretary of FBA(Attorney general of SUG)
v. Two other members nominated by the FBA president
vi. The Registrar, as Secretary of the Council
vii. The Deputy Registrar

II. QUALIFICATIONS

A. CHIEF JUDGE

i. Such member must have substantially certified his/her membership with the FBA President.
ii. Must be an inducted, certified and pragmatic barrister with not less than three (3) years experience, hence, a Senior Advocate
iii. Must have contributed his/her substantial quota for the growth of the association.
iv. Must be financially up-to-date in the association.
v. Must have recorded a minimum of 80% attendance to meetings.
vi. Must have Court setting experience
vii. Must be of unquestionable character and capable of steering the wheels of the Judiciary.
viii. Must neither belong to the SUG Executive Arm of Government nor a member of the Legislative Arm of Government.

B. JUDGES

i. Such member must have substantially certified his/her membership with the FBA President.
ii. Must be an inducted, certified and pragmatic barrister with not less than three (3) years experience, hence, must be certified a doctor
iii. Must be financially up-to-date in the association.
iv. Must have recorded a minimum of 80% attendance to meetings.
v. Must be of unquestionable character.
vi. Must neither belong to the SUG Executive Arm of Government nor a member of the Legislative Arm of Government.

C. REGISTRAR & DEPUTY REGISTRAR

i. The Registrar and Deputy Registrar shall be appointed by members of the Judicial Council.
ii. The must be inducted and certified members of the FBA.

III. FUNCTIONS OF THE JUDICIARY

i. To entertain all forms of litigation brought to it by any members of the Students' Union and any business or organization operating under the Union.
   All such cases shall be tried and judgment delivered within 21 days.
ii. Exercising original and appellate jurisdiction over matters relating to:
   - Elections and petitions as concerns the Union/School.
   - Interpretation of Constitutions as concerns the Union/School.
   - Code of conduct interpretations as concerns the Union/School.
   - Interpretation of Acts, Laws, Rules or Regulations asconcerns the Union/School.

G. Be the custodian of the association's materials except otherwise stated in subsequent section of this constitution.

H. The Secretary General shall be accorded with the title and duties of the Attorney General of the Students' Union Government and herein after be referred to as "THE ATTORNEY GENERAL OF FUTO".

II. THE ASSISTANT SECRETARY GENERAL

The Assistant Secretary General shall:

A. Assist the Secretary General in his official duties and stand-in in his/her absence.

B. Co-ordinate the association's functions like seminars, symposia, workshops, exhibitions and any other such programmes the association may wish to carry out. But this provision does not prevent the General House from conferring such powers/functions on any person(s) or committee(s).

C. Carry out functions as maybe herein after assigned by the constitution, the President or the General House.

III. THE FINANCIAL SECRETARY

The Financial Secretary shall:

I. Present an annual budget of the association to the General House not later than 2 weeks after assumption of office.

II. Make public the approved and audited account of the association once in every month.

III. Be accountable to the Executive Council and the entire members of the association for the disbursement of the approved budget of the association.

IV. Keep statutory books of accounts of the association as by the auditor general of the association.

V. Be signatory to the association cheque and other financial transactions.

VI. Be responsible for the settlement of all financial transactions of the association.

VII. Ensure that all money given to officers is satisfactorily accounted for by the presentation of the auditor general's certified document to that effect before such officers are allowed more withdrawals.

VIII. Ensure that no member of the Executive Council exceeds the approved budget for that office unless approved by the General House on the recommendation of the Auditor General.

IV. THE TREASURER

The Treasurer shall:

I. Be signatory to the association's cheques and accounts.

II. Take custody and maintain all books/accounts/finances of the association.

III. Put all money belonging to the association into its account within 24 hours.

IV. Issue receipts for any money collected by him/her from the Financial Secretary.

V. Remit money for all expenditures approved by the President to any person or committee who would make use of it.

VI. Record all withdrawals and expenditures made or incurred by the association with the requisite authority and approved by the President.

VII. Keep an imprest of not more than N1,000 which is subject to review.

V. THE PUBLIC RELATIONS OFFICER

The Public Relations Officer shall:

A. Carry out the publicity of the association.

B. Inform all members on matters that concern them.

C. Be responsible for the publication of the association's gazette and newsletters.

E. No Barrister should be awarded a double degree if found, should be sanctioned and degrees withdrawn by the association.
F. Best graduating Students from SSPS should be awarded a scholarship of doctorate

III. BREACH OF CODE OF CONDUCT

A. Any member or executive council member who defaults on any act prohibited by this code either through a trustee, an agent or his/her self shall be deemed to have violated this code.
B. Punishments ranging from warning, fine, suspension or dismissal from office or the association may be recommended by the Code of Conduct Panel and approved by two-third (2/3) of the members in a properly constituted meeting.

ARTICLE 12: ELECTIONS AND VOTING

I. QUALIFICATIONS/ ELIGIBILITY TO CONTEST FOR ELECTIONS

Eligibility of member to contest for elections is as follows:

A. Must be a Senior Barrister in 300l for President and 200l for Vice President while every other position remains open to other members between 100-300l.
B. Must be certified and financially up-to-date.
C. Must have recorded at least 80% attendance in meetings and functions.
D. Must be of unquestionable character.
E. Must be a pragmatic member and adhere to the Code of Conduct.

II. ELECTIONS

I. Elections shall be conducted at the beginning of each session And in any case not later than six (6) weeks after resumption of new session.
II. The Electoral Commission shall put up regulation/electoral guidelines in relation to (article 10, section I) of this constitution and such regulation shall be published at least two (2) weeks before the election date.
III. All petitions on electoral malpractice shall be directed to the Electoral Court which shall be set up by the Judicial Council.
IV. Any petition against any electoral process shall not be entertained after forty-eight (48) hours of the declaration of results.
V. Any election stands nullified if a motion to that effect is submitted within forty-eight(48) hours of result declaration, and is passed by two-third (2/3) majority of a house, comprising 4-5 or above of the members, by a nullification order issued by the Court.
VI. Each out-going Executive Council is required to make a written handover of all documents/property in their possession, to their successor, not later than two (2) weeks after the Swearing-In or Inauguration Ceremony.
VII. The Swearing-In/Inauguration Ceremony shall take place not later than three (3) weeks after Elections.

III. VOTING

A. Only certified and registered members of the association are eligible to vote in elections.
B. The voting shall be by open-ballot system.
C. At the end of the polling, the Chairman or any member of the Electoral Commission as may be delegated, shall open the ballot boxes and count the votes in the presence of the candidates and/or one of each of the candidate's representatives.
D. The winner of any election shall be the candidate with the highest number of votes.
E. In the event of a tie, the Electoral Commission shall arrange a run-off election within seven (7) days.

ARTICLE 14: AMMENDMENT OF CONSTITUTION

The Barristers shall have the power to amend or review this constitution as and when necessary and as follows:

A. A motion for amendment shall be moved in a general meeting and seconded.
B. The President shall further constitute a 5-man committee for the review or amendment of this constitution.
C. The Committee shall come up with their recommendation which shall further be adopted by the association, in a General Meeting, not later than two (2) weeks from date of appointment.
D. If and when adopted, the President shall proceed to sign it into law.

CONSTITUTION REVIEW COMMITTEE 2020/2021 ACADEMIC SESSION.

Barr. Dr. Comr. Chineke Emmanuel Ekene

(Senior Advocate of FUTO)

(Chairman)

Barr. Dr. Ogbuehi Ijeoma

(Editor general)

Barr. high Comr. Diala Ihioma D.

Sectary General)

Barr. Opara Emmanuel

(Member)

Barr. Festus Divine

(Member)

DURING THE TENURE OF:

His Excellency Barr. Dr. Comr. Okeke KayKay K.

As

FBA PRESIDENT